

§ 1997e(a). This case presents the question whether a prisoner who fails to comply with that exhaustion requirement may cure the defect by filing an amended or supplemental complaint after his release. Because the Circuits are divided on this important question of federal law, I would grant the petition for certiorari.

While incarcerated, respondent brought this *pro se* action against prison medical personnel under 42 U.S.C. § 1983, but he did not complete the prison's grievance process before filing suit. After he was released, respondent filed an amended and supplemental complaint. The District Court dismissed respondent's claims against petitioners for failure to exhaust administrative remedies as required by the PLRA.

The Third Circuit vacated the District Court's judgment, concluding that the PLRA's exhaustion requirement no longer applied to respondent's claims in light of his postrelease filing. 938 F.3d 69 (2019). The court rejected petitioners' argument that the plain language of the statute, which speaks to when an "action [may] be brought," requires courts to assess PLRA compliance at the time of the initial filing. § 1997e(a). Noting that our decision in *Jones v. Bock*, 549 U.S. 199 (2007), characterized this language as "boilerplate," *id.*, at 220, the court determined that the statute's text did not clearly displace normal procedural rules. The court further concluded that, under Federal Rule of Civil Procedure 15, the amended and supplemental complaint related back to respondent's initial filing and therefore superseded the original complaint. Because respondent was no longer a prisoner when he amended and supplemented his complaint, the court reasoned that he was no longer subject to the PLRA's prefiling requirements.

The Third Circuit noted that its holding was consistent with the Ninth Circuit's approach in *Jackson v. Fong*, 870 F.3d 928 (2017), but conflicted with the Eleventh Circuit's en banc decision in *Harris v. Garner*, 216 F.3d 970 (2000). In *Harris*, the Eleventh Circuit interpreted the same statutory language in a related PLRA requirement and held that prisoners could not cure their initial filing defects by amending or supplementing their complaints after release. *Id.*, at 981–982; see also *Smith v. Terry*, 491 Fed. Appx. 81, 83 (CA11 2012) (applying *Harris* to the PLRA's exhaustion requirement). The Third Circuit's position also conflicts with that of the Fifth Circuit, which has recently explained that a complaint must be dismissed and refiled postrelease in order for a prisoner to avoid the PLRA's exhaustion require-

ment. *Bargher v. White*, 928 F. 3d 439, 447–448 (2019). Thus, four Courts of Appeals are evenly divided on the question presented.*

Respondent suggests that the Fifth and Eleventh Circuits may revisit their view in light of our decision in *Jones*. As an initial matter, both Circuits have affirmed their positions in decisions that postdate *Jones*. See *Bargher*, 928 F. 3d 439; *Smith*, 491 Fed. Appx. 81. But more importantly, respondent reads our “boilerplate” dicta for far more than it is worth. In *Jones*, we rejected court-made pleading rules for *pro se* litigants, explaining that “the PLRA’s screening requirement does not—explicitly or implicitly—justify deviating from the usual procedural practice *beyond the departures specified by the PLRA itself*.” 549 U. S., at 214 (emphasis added). Thus, that decision actually confirms that the PLRA’s prefiling requirements displace the Federal Rules of Civil Procedure, including Rule 15. We characterized the phrase “no action shall be brought” as “boilerplate” solely for the purpose of explaining that the PLRA speaks to the dismissal of defective claims, not necessarily entire complaints. *Id.*, at 220. We have never addressed the meaning of that language as applied to the context at issue here.

Finally, this question warrants our review because its resolution will have significant ramifications for not only prisoners and prison officials but also federal courts. In recent years, nearly 10,000 lawsuits have been filed annually by prisoners challenging prison conditions. See Administrative Office of the United States Courts, Federal Judicial Caseload Statistics, U. S. District Courts—Civil Cases Commenced, by Basis of Jurisdiction and Nature of Suit (2019) (Table C–2). And nearly twice as many lawsuits are filed annually raising other civil rights claims, *ibid.*, which are subject to similarly worded prefiling requirements under the PLRA, see, *e. g.*, § 1997e(e). Recognizing the PLRA’s important role in curtailing the proliferation of abusive prisoner litigation, we have repeatedly rejected lower courts’ attempts to create end-runs around the statute’s exhaustion requirement. See, *e. g.*, *Ross v. Blake*, 578 U. S. 632, 639–642 (2016); *Woodford v. Ngo*, 548 U. S. 81, 91, n. 2 (2006); *Porter v. Nussle*, 534 U. S. 516, 520 (2002); *Booth v. Churner*, 532 U. S. 731, 741, n. 6 (2001). The same may be warranted here.

*A panel of the Sixth Circuit has also agreed with the Eleventh Circuit in dicta. See *Cox v. Mayer*, 332 F. 3d 422, 428 (2003).

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Because this petition presents an important question that has divided the Circuits, it deserves our review. See this Court's Rule 10(a). I see no reason to continue allowing certain prisoners in the Third and Ninth Circuits to proceed unencumbered by the PLRA's exhaustion requirement while those in the Fifth and Eleventh Circuits are required to comply. I therefore respectfully dissent from the denial of certiorari.

No. 19–1021. *JESSOP ET AL. v. CITY OF FRESNO, CALIFORNIA, ET AL.* C. A. 9th Cir. Motions of Institute for Justice, Cato Institute et al., New Civil Liberties Alliance, National Association of Criminal Defense Lawyers, Constitutional Accountability Center, and DKT Liberty Project et al. for leave to file briefs as *amici curiae* granted. Certiorari denied. Reported below: 936 F. 3d 937.

No. 19–7810. *EATON v. PACHECO, WARDEN.* C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 931 F. 3d 1009.

No. 19–7915. *DEATLEY v. WILLIAMS, EXECUTIVE DIRECTOR, COLORADO DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 782 Fed. Appx. 736.

No. 19–8291. *YAZZIE v. UNITED STATES.* C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 791 Fed. Appx. 777.

No. 19–8293. *WALKER v. UNITED STATES.* C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 19–876. *RAMIREZ v. HOGUE ET AL.*, 589 U. S. 1276;

No. 19–1005. *HOTZE HEALTH WELLNESS CENTER INTERNATIONAL ONE, LLC, ET AL. v. ENVIRONMENTAL RESEARCH CENTER, INC.*, 589 U. S. 1277;

No. 19–6426. *RAMIREZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*, 589 U. S. 1254;

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- No. 19–6657. *SMITH v. SCOTT ET AL.*, 589 U. S. 1181;
No. 19–6783. *JARVIS v. ALLISON, SHERIFF, PEARL RIVER COUNTY, MISSISSIPPI, ET AL.*, 589 U. S. 1212;
No. 19–6839. *SMITH v. UNDERWOOD, ATTORNEY GENERAL OF NEW YORK, ET AL.*, 589 U. S. 1213;
No. 19–7017. *WILLIAMS v. TACO BELL*, 589 U. S. 1218;
No. 19–7023. *COTTON v. ECKSTEIN, WARDEN*, 589 U. S. 1218;
No. 19–7085. *OEUR v. COUNTY OF LOS ANGELES, CALIFORNIA*, 589 U. S. 1220;
No. 19–7228. *CARTER v. UNITED STATES*, 589 U. S. 1224;
No. 19–7230. *IN RE LOPEZ*, 589 U. S. 1263;
No. 19–7374. *IN RE WALLACE*, 589 U. S. 1274;
No. 19–7413. *CLANCY v. FLORIDA DEPARTMENT OF CORRECTIONS ET AL.*, 589 U. S. 1283;
No. 19–7489. *DURAN v. DIAZ, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION*, 589 U. S. 1261;
No. 19–7716. *WALLACE v. UNITED STATES*, 589 U. S. 1288;
No. 19–7792. *IN RE LOPEZ*, 589 U. S. 1293; and
No. 19–7944. *IN RE BEEBE*, 589 U. S. 1293. Petitions for rehearing denied.

MAY 19, 2020

Certiorari Denied

No. 19–8483 (19A1040). *BARTON v. STANGE, WARDEN*. C. A. 8th Cir. Application for stay of execution of sentence of death, presented to JUSTICE GORSUCH, and by him referred to the Court, denied. Reported below: 959 F. 3d 867.

MAY 20, 2020

Miscellaneous Order

No. 19A1035. *DEPARTMENT OF JUSTICE v. HOUSE COMMITTEE ON THE JUDICIARY*. Application for stay of the mandate, presented to THE CHIEF JUSTICE, and by him referred to the Court, granted. Issuance of the mandate of the United States Court of Appeals for the District of Columbia Circuit, case No. 19–5288, is stayed pending filing and disposition of a petition for writ of certiorari, if such petition is filed on or before June 1, 2020, by 5 p.m. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for

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writ of certiorari is granted, the stay shall terminate upon the issuance of the judgment of this Court. If no petition for writ of certiorari is filed on or before June 1, 2020, by 5 p.m., the stay shall terminate.

MAY 21, 2020

Miscellaneous Order

No. 19A1038. IDAHO DEPARTMENT OF CORRECTION ET AL. *v.* EDMO. D. C. Idaho. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, denied. JUSTICE THOMAS and JUSTICE ALITO would grant the application.

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Certiorari Granted—Vacated and Remanded

No. 19–7685. LINDSEY *v.* UNITED STATES. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Davis v. United States*, 589 U. S. 345 (2020) (*per curiam*). Reported below: 774 Fed. Appx. 261.

Certiorari Dismissed

No. 19–8059. ARUNACHALAM *v.* UBER TECHNOLOGIES, INC. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 19A1021. PERRY-BEY ET AL. *v.* CITY OF NORFOLK, VIRGINIA, ET AL. Sup. Ct. Va. Application for stay, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. 19A1041. WILLIAMS, WARDEN, ET AL. *v.* WILSON ET AL. D. C. N. D. Ohio. Application for stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied. The Government is seeking a stay only of the District Court's April 22 preliminary injunction. But on May 19, the District Court issued a new order enforcing the preliminary injunction and imposing additional measures. The Government has not sought review of or a stay of the May 19 order in the United States Court of Appeals for the Sixth Circuit. Particularly in light of that proce-

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dural posture, the Court declines to stay the District Court's April 22 preliminary injunction without prejudice to the Government seeking a new stay if circumstances warrant. JUSTICE THOMAS, JUSTICE ALITO, and JUSTICE GORSUCH would grant the application.

No. D-3058. IN RE DISBARMENT OF ROMERO. Disbarment entered. [For earlier order herein, see 589 U. S. 1129.]

No. 19M138. SMITH *v.* UNIVERSITY OF CHICAGO MEDICAL CENTER. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 18-107. R. G. & G. R. HARRIS FUNERAL HOMES, INC. *v.* EQUAL EMPLOYMENT OPPORTUNITY COMMISSION ET AL. C. A. 6th Cir. [Certiorari granted, 587 U. S. 960.] Motion to substitute Donna Stephens, as Trustee of the Aimee A. and Donna Stephens Trust, as respondent in place of Aimee Stephens, deceased, granted.

No. 19-8006. GREINER *v.* MACOMB COUNTY, MICHIGAN, ET AL. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until June 16, 2020, within which to pay the docketing fee required by this Court's Rule 38(a).

No. 19-1140. IN RE PERKINS; and

No. 19-8033. IN RE HAMPTON. Petitions for writs of mandamus denied.

No. 19-8284. IN RE YOUNG. Petition for writ of mandamus and/or prohibition denied.

No. 19-8351. IN RE RAGHUBIR. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus and/or prohibition dismissed. See this Court's Rule 39.8.

Certiorari Denied

No. 19-871. JOHNSON *v.* KISER, WARDEN. Sup. Ct. Va. Certiorari denied.

No. 19-873. GEOPHYSICAL SERVICE, INC. *v.* TGS-NOPEC GEOPHYSICAL Co. C. A. 5th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 253.

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No. 19–917. *JOSLYN MANUFACTURING Co., LLC, ET AL. v. VALBRUNA SLATER STEEL CORP. ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 934 F. 3d 553.

No. 19–972. *McMILLEN v. NEW CANEY INDEPENDENT SCHOOL DISTRICT.* C. A. 5th Cir. Certiorari denied. Reported below: 939 F. 3d 640.

No. 19–974. *SCHMITT ET AL. v. LaROSE, OHIO SECRETARY OF STATE.* C. A. 6th Cir. Certiorari denied. Reported below: 933 F. 3d 628.

No. 19–992. *SKIPPER, WARDEN v. BYRD.* C. A. 6th Cir. Certiorari denied. Reported below: 940 F. 3d 248.

No. 19–1048. *RAMOS v. BARR, ATTORNEY GENERAL.* C. A. 11th Cir. Certiorari denied. Reported below: 802 Fed. Appx. 510.

No. 19–1056. *NOEM, GOVERNOR OF SOUTH DAKOTA, ET AL. v. FLANDREAU SANTEE SIOUX TRIBE.* C. A. 8th Cir. Certiorari denied. Reported below: 938 F. 3d 928.

No. 19–1101. *CANADA v. MERLINI.* C. A. 1st Cir. Certiorari denied. Reported below: 926 F. 3d 21.

No. 19–1131. *ACTAVIS LABORATORIES FL, INC. v. NALPROPION PHARMACEUTICALS LLC.* C. A. Fed. Cir. Certiorari denied. Reported below: 934 F. 3d 1344.

No. 19–1148. *BRUNO, AS PARENT, GUARDIAN, AND NEXT FRIEND OF R. B., A MINOR, ET AL. v. NORTHSIDE INDEPENDENT SCHOOL DISTRICT.* C. A. 5th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 287.

No. 19–1152. *ISL LOAN TRUST ET AL. v. MILLENNIUM LAB HOLDINGS II, LLC, ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 945 F. 3d 126.

No. 19–1160. *MURPHY v. OFFICE OF DISCIPLINARY COUNSEL.* Sup. Ct. Pa. Certiorari denied.

No. 19–1164. *JOHNSON v. WORKERS' COMPENSATION APPEALS BOARD ET AL.* Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied.

No. 19–1167. *KENNEDY v. MORRIS, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied.

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No. 19–1171. *MCDONALD v. CITIBANK, N. A., ET AL.* Ct. App. Colo. Certiorari denied.

No. 19–1178. *ZABKA ET AL. v. UNITED STATES ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 401.

No. 19–1183. *ODYSSEY CONTRACTING CORP. v. L & L PAINTING Co., INC.* C. A. 3d Cir. Certiorari denied. Reported below: 944 F. 3d 483.

No. 19–1187. *MATCO TOOLS CORP. ET AL. v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 681.

No. 19–1192. *MISSOURI EX REL. KEY INSURANCE CO. v. ROLDAN, JUDGE, CIRCUIT COURT OF MISSOURI, JACKSON COUNTY, ET AL.* Sup. Ct. Mo. Certiorari denied. Reported below: 587 S. W. 3d 638.

No. 19–1199. *HIGGINSON v. BECERRA, ATTORNEY GENERAL OF CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 705.

No. 19–1210. *HARRY’S NURSES REGISTRY ET AL. v. GAYLE ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 802 Fed. Appx. 1.

No. 19–1223. *TAYLOR, AS REPRESENTATIVE OF THE ESTATE OF LILLY, DECEASED, ET AL. v. MCLENNAN COUNTY, TEXAS, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 634.

No. 19–1236. *EVENS v. EVENS.* Sup. Ct. S. D. Certiorari denied.

No. 19–1238. *WATSON v. MCCARTHY, SECRETARY OF THE ARMY.* C. A. 5th Cir. Certiorari denied. Reported below: 793 Fed. Appx. 277.

No. 19–1245. *KWUSHUE v. UNITED STATES.* C. A. 11th Cir. Certiorari denied.

No. 19–1247. *LOVINGOOD v. DISCOVERY COMMUNICATIONS, INC., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 800 Fed. Appx. 840.

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No. 19–6668. *WOLF ET AL. v. IDAHO BOARD OF CORRECTION ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 557.

No. 19–6926. *CAMPBELL v. UNITED STATES.* C. A. 9th Cir. Certiorari denied. Reported below: 937 F. 3d 1254.

No. 19–7061. *SMITH v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 654.

No. 19–7288. *GAMMELL v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 932 F. 3d 1175.

No. 19–7456. *CARROLL v. ALABAMA.* Sup. Ct. Ala. Certiorari denied.

No. 19–7629. *HILL-LOMAX v. VITTETOE ET AL.* Sup. Ct. Iowa. Certiorari denied.

No. 19–8022. *DIXON v. SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 932 F. 3d 789.

No. 19–8047. *DANIEL v. WARD, COMMISSIONER, GEORGIA DEPARTMENT OF CORRECTIONS.* C. A. 11th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 1007.

No. 19–8052. *ALMAHMMODY v. TENNESSEE.* Ct. Crim. App. Tenn. Certiorari denied.

No. 19–8058. *BRACK, AKA BARRACK, AKA BLACK v. NEW JERSEY.* Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–8068. *BOUDETTE v. BOUDETTE, NKA OSKERSON.* Sup. Ct. Mont. Certiorari denied. Reported below: 397 Mont. 519, 453 P. 3d 893.

No. 19–8069. *NEWTON v. OHIO.* Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-3566.

No. 19–8070. *LAI v. UNITED STATES ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–8073. *BAKER v. CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL.* C. A. 3d Cir. Certiorari denied.

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No. 19–8074. *GUNTER v. PULSIPHER*. C. A. 10th Cir. Certiorari denied.

No. 19–8075. *MENDEL v. UBER TECHNOLOGIES, INC., ET AL.* (Reported below: 805 Fed. Appx. 485); *MENDEL v. UBER TECHNOLOGIES, INC., ET AL.*; and *MENDEL v. CHAO, SECRETARY OF TRANSPORTATION, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8077. *ANDERSON v. VALENZUELA ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–8078. *BANKS v. ILLINOIS*. App. Ct. Ill., 5th Dist. Certiorari denied.

No. 19–8084. *YOUNG v. HALLIGAN*. C. A. 3d Cir. Certiorari denied. Reported below: 789 Fed. Appx. 928.

No. 19–8085. *ZAMICHEL v. MCGINLEY, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT COAL TOWNSHIP, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–8086. *JACKSON v. TAYLOR, INTERIM COMMISSIONER, MISSISSIPPI DEPARTMENT OF CORRECTIONS*. C. A. 5th Cir. Certiorari denied.

No. 19–8088. *RODRIGUES v. MASSACHUSETTS*. App. Ct. Mass. Certiorari denied. Reported below: 96 Mass. App. 105, 132 N. E. 3d 1067.

No. 19–8093. *PASSALACQUA v. McDONALD, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–8096. *NOBLE v. JACKSON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–8124. *GARCIA VELASCO v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied.

No. 19–8135. *TANAMOR-STEFFAN v. BARR, ATTORNEY GENERAL*. C. A. 5th Cir. Certiorari denied.

No. 19–8169. *MADERO-GIL v. UNITED STATES* (Reported below: 797 Fed. Appx. 890); *MAJANO MALDONADO v. UNITED STATES* (798 Fed. Appx. 821); *HERNANDEZ LOZANO v. UNITED STATES* (796 Fed. Appx. 227); *REYNOSO-VALDEZ v. UNITED STATES* (798 Fed. Appx. 833); and *MELENDEZ-WISENTHAL, AKA*

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DIAZ ISAGUIRRE, AKA AGUILLAR, AKA ANTONIO GONZALEZ *v.* UNITED STATES (797 Fed. Appx. 876). C. A. 5th Cir. Certiorari denied.

No. 19–8181. JORDAN *v.* NORTH CAROLINA. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 286.

No. 19–8194. CRUPI *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 172 App. Div. 3d 898, 100 N. Y. S. 3d 56.

No. 19–8196. GENTRY *v.* ARIZONA. Ct. App. Ariz. Certiorari denied. Reported below: 247 Ariz. 381, 449 P. 3d 707.

No. 19–8208. HARRIS *v.* JENNINGS, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 19–8232. JACKSON *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 19–8248. WILMORE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 19–8268. BROWN *v.* DESROCHERS ET AL. C. A. 6th Cir. Certiorari denied.

No. 19–8279. LAGASSE *v.* INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 19–8294. JOHNSON *v.* MISSISSIPPI. Ct. App. Miss. Certiorari denied.

No. 19–8295. JENKINS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 227.

No. 19–8308. GOODEN *v.* UNITED STATES NAVY/UNITED STATES MARINE CORPS ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 411.

No. 19–8310. HAYNES *v.* PETERS, DIRECTOR, OREGON DEPARTMENT OF CORRECTIONS, ET AL. C. A. 9th Cir. Certiorari denied.

No. 19–8316. TROY-McKoy *v.* NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION. Ct. App. N. Y. Certiorari denied. Reported below: 34 N. Y. 3d 905, 137 N. E. 3d 1106.

No. 19–8328. STREGE *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

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No. 19–8329. *STREGE v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–8333. *ALI, AKA PERRY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 791 Fed. Appx. 430.

No. 19–8334. *BUTLER v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 790 Fed. Appx. 782.

No. 19–8336. *REYES-YANEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 796 Fed. Appx. 427.

No. 19–8339. *SANTIAGO v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 947 F. 3d 1.

No. 19–8340. *SCRUGGS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 799 Fed. Appx. 432.

No. 19–8342. *DUHEART v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 794 Fed. Appx. 440.

No. 19–8361. *PRICE v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–8364. *VANCE v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 956 F. 3d 846.

No. 19–8376. *GUERRERO-CASTRO v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 939 F. 3d 16.

No. 17–1236. *REPUBLIC OF SUDAN ET AL. v. OWENS ET AL.* C. A. D. C. Cir. Motion of former U. S. Ambassadors for leave to file brief as *amici curiae* granted. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion and this petition. Reported below: 864 F. 3d 751.

No. 17–1406. *REPUBLIC OF SUDAN ET AL. v. OPATI, IN HER OWN RIGHT, AND AS EXECUTRIX OF THE ESTATE OF OPATI, DECEASED, ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 864 F. 3d 751.

No. 19–766. *NORTH CAROLINA v. COURTNEY*. Sup. Ct. N. C. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 372 N. C. 458, 831 S. E. 2d 260.

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No. 19–1012. GENERAL ELECTRIC CO. *v.* RAYTHEON TECHNOLOGIES CORP., FKA UNITED TECHNOLOGIES CORP. C. A. Fed. Cir. Certiorari denied. JUSTICE BREYER and JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 928 F. 3d 1349.

No. 19–5921. MONTGOMERY *v.* UNITED STATES. C. A. 8th Cir. Motion of Ethics Bureau at Yale for leave to file brief as *amicus curiae* granted. Certiorari denied.

Rehearing Denied

No. 19–943. VAZIRABADI *v.* DENVER HEALTH AND HOSPITAL AUTHORITY ET AL., 589 U. S. 1294;

No. 19–6877. BROWN *v.* FLORIDA, 589 U. S. 1265;

No. 19–7169. COBBLE *v.* UNITED STATES, 589 U. S. 1222;

No. 19–7296. IN RE MARTINEZ, 589 U. S. 1263;

No. 19–7302. SHAMPINE *v.* SARVER’S REALTY ET AL., 589 U. S. 1280;

No. 19–7391. DAVIS *v.* TEGLEY ET AL., 589 U. S. 1296;

No. 19–7402. SANDERS *v.* HENNEPIN COUNTY HUMAN SERVICE AND PUBLIC HEALTH DEPARTMENT CHILD SUPPORT ET AL., 589 U. S. 1296;

No. 19–7471. BROWN *v.* SAN BERNARDINO COUNTY, CALIFORNIA, ET AL., 589 U. S. 1284; and

No. 19–7605. KANE *v.* PENNSYLVANIA, 589 U. S. 1308. Petitions for rehearing denied.

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Miscellaneous Orders

No. 19A1039. MARLOWE *v.* LEBLANC, SECRETARY, LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS, ET AL. C. A. 5th Cir. Application to vacate stay, presented to JUSTICE ALITO, and by him referred to the Court, denied. Nothing in this order should be construed to preclude applicant from filing a grievance setting out specifically the relief he requests be provided to him in prison, and in the event that such request is filed, it should be decided promptly.

No. 19A1044. SOUTH BAY UNITED PENTECOSTAL CHURCH ET AL. *v.* NEWSOM, GOVERNOR OF CALIFORNIA, ET AL. Application for injunctive relief, presented to JUSTICE KAGAN, and by

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her referred to the Court, denied. JUSTICE THOMAS, JUSTICE ALITO, JUSTICE GORSUCH, and JUSTICE KAVANAUGH would grant the application.

CHIEF JUSTICE ROBERTS, concurring.

The Governor of California’s Executive Order aims to limit the spread of COVID–19, a novel severe acute respiratory illness that has killed thousands of people in California and more than 100,000 nationwide. At this time, there is no known cure, no effective treatment, and no vaccine. Because people may be infected but asymptomatic, they may unwittingly infect others. The Order places temporary numerical restrictions on public gatherings to address this extraordinary health emergency. State guidelines currently limit attendance at places of worship to 25% of building capacity or a maximum of 100 attendees.

Applicants seek to enjoin enforcement of the Order. “Such a request demands a significantly higher justification than a request for a stay because, unlike a stay, an injunction does not simply suspend judicial alteration of the status quo but grants judicial intervention that has been withheld by lower courts.” *Respect Maine PAC v. McKee*, 562 U. S. 996 (2010) (internal quotation marks omitted). This power is used where “the legal rights at issue are indisputably clear” and, even then, “sparingly and only in the most critical and exigent circumstances.” S. Shapiro, K. Geller, T. Bishop, E. Hartnett & D. Himmelfarb, *Supreme Court Practice* § 17.4, p. 17–9 (11th ed. 2019) (internal quotation marks omitted) (collecting cases).

Although California’s guidelines place restrictions on places of worship, those restrictions appear consistent with the Free Exercise Clause of the First Amendment. Similar or more severe restrictions apply to comparable secular gatherings, including lectures, concerts, movie showings, spectator sports, and theatrical performances, where large groups of people gather in close proximity for extended periods of time. And the Order exempts or treats more leniently only dissimilar activities, such as operating grocery stores, banks, and laundromats, in which people neither congregate in large groups nor remain in close proximity for extended periods.

The precise question of when restrictions on particular social activities should be lifted during the pandemic is a dynamic and

fact-intensive matter subject to reasonable disagreement. Our Constitution principally entrusts “[t]he safety and the health of the people” to the politically accountable officials of the States “to guard and protect.” *Jacobson v. Massachusetts*, 197 U. S. 11, 38 (1905). When those officials “undertake[] to act in areas fraught with medical and scientific uncertainties,” their latitude “must be especially broad.” *Marshall v. United States*, 414 U. S. 417, 427 (1974). Where those broad limits are not exceeded, they should not be subject to second-guessing by an “unelected federal judiciary,” which lacks the background, competence, and expertise to assess public health and is not accountable to the people. See *Garcia v. San Antonio Metropolitan Transit Authority*, 469 U. S. 528, 546 (1985).

That is especially true where, as here, a party seeks emergency relief in an interlocutory posture, while local officials are actively shaping their response to changing facts on the ground. The notion that it is “indisputably clear” that the Government’s limitations are unconstitutional seems quite improbable.

JUSTICE KAVANAUGH, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, dissenting.

I would grant the Church’s requested temporary injunction because California’s latest safety guidelines discriminate against places of worship and in favor of comparable secular businesses. Such discrimination violates the First Amendment.

In response to the COVID–19 health crisis, California has now limited attendance at religious worship services to 25% of building capacity or 100 attendees, whichever is lower. The basic constitutional problem is that comparable secular businesses are not subject to a 25% occupancy cap, including factories, offices, supermarkets, restaurants, retail stores, pharmacies, shopping malls, pet grooming shops, bookstores, florists, hair salons, and cannabis dispensaries.

South Bay United Pentecostal Church has applied for temporary injunctive relief from California’s 25% occupancy cap on religious worship services. Importantly, the Church is willing to abide by the State’s rules that apply to comparable secular businesses, including the rules regarding social distancing and hygiene. But the Church objects to a 25% occupancy cap that is imposed on religious worship services but not imposed on those comparable secular businesses.

In my view, California's discrimination against religious worship services contravenes the Constitution. As a general matter, the "government may not use religion as a basis of classification for the imposition of duties, penalties, privileges or benefits." *McDaniel v. Paty*, 435 U. S. 618, 639 (1978) (Brennan, J., concurring in judgment). This Court has stated that discrimination against religion is "odious to our Constitution." *Trinity Lutheran Church of Columbia, Inc. v. Comer*, 582 U. S. 449, 467 (2017); see also, e. g., *Good News Club v. Milford Central School*, 533 U. S. 98 (2001); *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U. S. 819 (1995); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U. S. 520 (1993); *Lamb's Chapel v. Center Moriches Union Free School Dist.*, 508 U. S. 384 (1993); *McDaniel*, 435 U. S. 618.

To justify its discriminatory treatment of religious worship services, California must show that its rules are "justified by a compelling governmental interest" and "narrowly tailored to advance that interest." *Lukumi*, 508 U. S., at 531–532. California undoubtedly has a compelling interest in combating the spread of COVID-19 and protecting the health of its citizens. But "restrictions inexplicably applied to one group and exempted from another do little to further these goals and do much to burden religious freedom." *Roberts v. Neace*, 958 F. 3d 409, 414 (CA6 2020) (*per curiam*). What California needs is a compelling justification for distinguishing between (i) religious worship services and (ii) the litany of other secular businesses that are not subject to an occupancy cap.

California has not shown such a justification. The Church has agreed to abide by the State's rules that apply to comparable secular businesses. That raises important questions: "Assuming all of the same precautions are taken, why can someone safely walk down a grocery store aisle but not a pew? And why can someone safely interact with a brave deliverywoman but not with a stoic minister?" *Ibid.*

The Church and its congregants simply want to be treated equally to comparable secular businesses. California already trusts its residents and any number of businesses to adhere to proper social distancing and hygiene practices. The State cannot "assume the worst when people go to worship but assume the best when people go to work or go about the rest of their daily lives in permitted social settings." *Ibid.*

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California has ample options that would allow it to combat the spread of COVID-19 without discriminating against religion. The State could “insist that the congregants adhere to social-distancing and other health requirements and leave it at that—just as the Governor has done for comparable secular activities.” *Id.*, at 415. Or alternatively, the State could impose reasonable occupancy caps across the board. But absent a compelling justification (which the State has not offered), the State may not take a looser approach with, say, supermarkets, restaurants, factories, and offices while imposing stricter requirements on places of worship.

The State also has substantial room to draw lines, especially in an emergency. But as relevant here, the Constitution imposes one key restriction on that line-drawing: The State may not discriminate against religion.

In sum, California’s 25% occupancy cap on religious worship services indisputably discriminates against religion, and such discrimination violates the First Amendment. See *Ohio Citizens for Responsible Energy, Inc. v. NRC*, 479 U. S. 1312 (1986) (Scalia, J., in chambers). The Church would suffer irreparable harm from not being able to hold services on Pentecost Sunday in a way that comparable secular businesses and persons can conduct their activities. I would therefore grant the Church’s request for a temporary injunction. I respectfully dissent.

NO. 19A1046. ELIM ROMANIAN PENTECOSTAL CHURCH ET AL. v. PRITZKER, GOVERNOR OF ILLINOIS. Application for injunctive relief, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. The Illinois Department of Public health issued new guidance on May 28. The denial is without prejudice to applicants filing new motion for appropriate relief if circumstances warrant.